

INSTRUCTIONS ON NOTICE OF HEARING FOR EVICTION

This form references specific South Dakota Codified Laws (SDCL), and you can find these laws on the South Dakota Legislature website. If you have any legal questions, it is highly recommended that you consult with an attorney. Court staff are unable to provide you with legal advice or assist you in completing this form. For specific questions related to the forms, you can contact the Legal Form Helpline at 1-855-784-0004 or email UJS staff at ujssrlhelp@uds.state.sd.us.

To complete this form, you will need to:

1. Inquire with the Clerk of Court to obtain a date and time for a hearing.
2. Complete the caption.
3. Enter the day and time of the hearing the clerk provided to you.
4. List the judge who will be presiding.
5. Enter the courtroom where the hearing will be held in.
6. Enter the county name and the city or town of that county.
7. Sign and date.
8. File with the Clerk of Court.
9. Mail a copy to the Defendant/Tenant(s).

STATE OF SOUTH DAKOTA
COUNTY OF _____

IN CIRCUIT COURT
_____ JUDICIAL CIRCUIT

Plaintiff/Landlord v. Defendant/Tenant(s)	Case No.: _____ NOTICE OF HEARING (FOR EVICTION)
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TO THE ABOVE-NAMED DEFENDANT/TENANT(S):

PLEASE TAKE NOTICE and be advised that a hearing on the Eviction filings in the above-captioned matter, is to be heard on the ____ day of _____, 20__ at ____: ____ ☐a.m./☐p.m. (check one), or as soon thereafter as is convenient for the Court before the Honorable _____, in courtroom _____ of the _____ County Courthouse in _____, South Dakota. Both parties shall personally appear and bring any witnesses and evidence with them that they plan to present to the Court. The Defendant/Tenant(s) may appear at the time and date set to show reason, if any, why the Court should not grant the above action as requested.

Dated this ____ day of _____, 20_____.

Plaintiff/Landlord's Signature

Plaintiff/Landlord's Printed Name

Plaintiff/Landlord's Mailing Address

City, State & Zip Code

Plaintiff/Landlord's Phone Number

****This Notice of Hearing must be mailed to the defendant at least seven (7) days before the hearing date.***